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Attorneys for Tyler James Robinson

**IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NOTICE OF EXPERT:
DR. BRYAN EDELMAN**

Case No. 251403576

Honorable Tony F. Graf, Jr.

Defendant, Tyler James Robinson, by and through counsel of record, hereby provides notice pursuant to Utah Code § 77-17-13 of Defendant's intent to introduce expert opinion testimony through Dr. Bryan Edelman at the anticipated evidentiary hearing on April 17, 2026. Dr. Edelman's curriculum vitae and contact information are being provided to the State concurrent with the filing of this Notice.

Dr. Edelman will testify as to the survey methodology, results, and opinions based thereupon as provided in the report dated March 13, 2026 entitled *Telephone Survey Results: Descriptive Statistics*. A copy of the report is being provided to the State concurrent with the filing of this Notice.

Dr. Edelman will also testify about the facts and opinions set forth at pages 1, 4-10, and 39-50 of his November 17, 2025 declaration filed in the case of *United States v. Payton Gendron*, No. 22-CR-109-LJV (W.D.N.Y.). A copy of the declaration is being provided to the State concurrent with the filing of this Notice.

Dr. Edelman will also testify about the demographic size and social and political characteristics of the adult population of Utah County, as reflected in United States Census data reported at <https://www.census.gov/quickfacts/fact/table/utahcountyutah/PST045224>, and as reflected in Utah State data cited at pages 66-67, 140 of Dkt. 305.

Dr. Edelman will also testify that pursuant to Utah Code § 78B-1-107 and Utah Rule of Judicial Administration 4-404, jurors in a criminal case are not selected from the entire adult population, but rather from a master jury list for each county, which is a compilation of the following source lists: (1) driver licenses and identification cards for citizens of the United States 18 years of age and older from the Driver's License Division of the Department of Public Safety; and (2) the official register of voters from the Elections Division of the Office of the Lt.

Governor. Dr. Edelman will reference and rely upon a study conducted for the Utah Judicial Council's Task Force on Racial and Ethnic Fairness in the Legal System which concluded that "[a] juror database is constructed using Department of Motor Vehicles (DMV) and voter Registration records. These two databases may not constitute a 'fair cross-section.' Minorities may be citizens but they may not be driving or voting citizens." Utah Judicial Council's Task Force on Racial and Ethnic Fairness in the Legal System, *Racial and Ethnic Fairness: Report On The State Of The Criminal And Juvenile Justice System* 150 (2000), <https://legacy.utcourts.gov/specproj/retaskforce/docs/Reportfinal.pdf>.

Dr. Edelman will also testify about the results of the public opinion surveys and other studies cited at pages 66-67, 157, 175-176 of Dkt. 305. He will also testify that one media outlet has reported that 87% of 23,388 persons polled thought that Mr. Robinson deserves the death penalty if he is convicted, as indicated in The National News Desk, *Does Charlie Kirk's alleged assassin deserve the death penalty if he's found guilty?*, *KOMO News* (Sept.17, 2025 at 8:06AM) https://komonews.com/question/vote-do-you-believe-charlie-kirks-assassin-deserves-the-death-penalty-if-hes-found-guilty-question-of-the-day-tyler-robinson-utah-valley-university-orem-president-donald-trump-radical-left-republican-democrat?utm_source=chatgpt.com.

Dr. Edelman will also testify about his review of the electronic pretrial publicity in this case and will offer his opinion regarding the prejudicial nature of such publicity.

Finally, Dr. Edelman will offer several opinions concerning social media coverage of notorious criminal cases, including the following:

SUMMARY OF OPINIONS

1. News exposure in the United States is now frequently ambient and incidental: many individuals encounter news while using online platforms primarily for other purposes, such as

entertainment, social connection, or shopping.

2. Algorithmic ranking and personalization increase the likelihood that residents of a particular geographic area will be exposed to online coverage and discussion of locally salient events more often than people outside that area. Local relevance and local network activity are commonly used signals in content selection and ranking.

3. As a result, local residents often do not need to seek out local news. Instead, they can be repeatedly exposed through feeds, recommended modules, and notifications, as well as through social sharing within local networks. This dynamic also makes sustained avoidance during trial more difficult than in legacy media environments.

4. Online environments frequently include large volumes of user-generated commentary that may be less moderated than print or broadcast channels. Empirical research shows that exposure to uncivil or hostile online commentary can shift perceptions and intensify reactions to the underlying information.

5. A substantial body of psychology-and-law research, including meta-analyses, finds that negative pretrial publicity can bias juror judgments, increase the likelihood of guilty verdicts in experimental settings, and contribute to memory and source-monitoring errors, including misattributing pretrial information as trial evidence.

BACKGROUND AND EXPLANATION

6. The modern online news environment differs from legacy print and broadcast media in two practical respects: (1) news is persistent, searchable, and easily redistributed, and (2) news is routinely delivered through algorithmically curated feeds and recommendations rather than solely through intentional consumption choices.

7. In legacy media, many exposures required purposeful action: purchasing or reading a

newspaper, turning on a scheduled broadcast, or visiting a news website. In contrast, major social and video platforms now interweave news with entertainment and social content, so that exposure can occur during ordinary, non-news online activity.

8. Peer-reviewed research on incidental news exposure documents that encountering news on social platforms without deliberately seeking it is common and has become a meaningful pathway by which people learn about current events.

9. This matters in a high-profile case because potential jurors may have been exposed not only to formal news reporting, but also to headlines, clips, reposts, and discussions that appear in feeds and recommendations. Such exposure may be repeated and may occur without the individual intending to consume case-related information.

ALGORITHMIC CURATION AND GEOGRAPHICALLY LOCALIZED EXPOSURE

10. Most major platforms use ranking and recommendation systems, known as algorithms, to choose which items to show a user and in what order. These systems evaluate many candidate items and prioritize those predicted to be most engaging or relevant to that user, based on signals such as prior engagement, network behavior, popularity, and contextual factors.

11. The objectives of these ranking and recommendation systems are closely tied to the business models of the platforms that deploy them. Many major internet and social media platforms are substantially supported by advertising revenue, and their financial incentives increase when they can keep users' attention for longer periods and deliver more effective targeted advertising. As a result, these systems are engineered to predict and maximize measurable engagement and to improve targeting performance, often by inferring user attributes, interests, and contexts (including location-related signals) that can be used to select and prioritize content most likely to capture attention. Peer-reviewed research in marketing and economics

documents that targeting and personalization can materially affect advertising effectiveness and thus platform profitability, and that the use of personal data and privacy tradeoffs are integral to this advertising-supported ecosystem.

12. Personalization can be empirically measured. Research has demonstrated that outputs such as search results and news selections can vary across users and contexts, including variation attributable to historical account usage and other contextual signals that can correlate with a user's environment.

13. In the context of a salient local event, residents are more likely to be connected to local sources and local networks that generate and circulate case-related content, and their platforms are more likely to infer local relevance. These factors increase the probability of repeated exposure among local residents relative to non-residents.

14. Accordingly, a resident may encounter case-related publicity while using the internet to view unrelated content or to communicate with others. The mechanisms are not limited to deliberate searching; they include recommendation modules, trending panels, and reposts or commentary surfaced because of local engagement

ONLINE PUBLICITY CAN BE MORE INFLAMMATORY AND HARDER TO AVOID

15. Online platforms routinely provide user comment features and social feedback mechanisms (likes, shares, replies). The result is that case-related reporting is often accompanied by user-generated commentary that may include speculation, misinformation, and expressions of strong bias.

16. Experimental research indicates that hostile or uncivil comments can affect readers' interpretations and perceptions. In practical terms, the same news item may be encountered alongside inflammatory commentary that can heighten emotional response and shape

impressions beyond the factual content of the reporting.

17. Avoidance is also more difficult online than in print or broadcast settings because exposure can be incidental and interwoven with everyday uses of platforms. Even a user who does not seek case coverage may still encounter it through algorithmic resurfacing and social sharing, particularly when a topic is locally prominent.

PRETRIAL PUBLICITY EFFECTS ON JUROR DECISION-MAKING

18. A large body of empirical research in psychology and law finds that exposure to pretrial publicity can bias juror decision-making. Meta-analytic research indicates that negative pretrial publicity increases the likelihood of guilty judgments in experimental studies.

19. Research also identifies cognitive mechanisms relevant to juror impartiality, including memory and source-monitoring problems in which individuals later confuse whether information came from media exposure or from trial evidence. Such effects can persist even when individuals intend to be fair and to follow instructions.

20. The contemporary online environment exacerbates these concerns because it increases volume, repetition, and emotional intensity of exposure, and because social endorsement cues (likes, shares, comments) elevate perceived consensus or certainty around narratives.

IMPLICATIONS FOR THE PRESENT MOTION

21. In considering the present motion, one of the factors the Court is directed to consider under Utah Rule of Judicial Administration 4-401.01 is “whether there is a reasonable likelihood that electronic media coverage will prejudice the right of the parties to a fair proceeding.” Dr. Edelman’s opinion is that contemporary online systems, which find an important visual source in

electronic media coverage of court proceedings, affect the likelihood and pathways of exposure to local-case publicity and the feasibility of avoidance.

22. From a technical and behavioral perspective, a locally salient high-profile case is more likely to produce widespread and repeated exposure among local residents because of algorithmic curation and local social sharing, as described above.

23. These dynamics bear on two practical considerations relevant to analysis of the motion: (1) the extent to which a local jury pool may have been exposed to case-related electronic coverage and commentary, and (2) the practical ability of jurors to avoid additional exposure during trial given the structure of online platforms. Algorithmic targeting is not only driven by geographic location, but by a wide array of behavioral signals including prior attention and engagement (like reading articles, watching video, or writing a comment). Online platforms use this data to predict what will keep a given user viewing, clicking, and sharing. In a case that is locally salient over an extended period, residents in the originating region are more likely, on average, to have accumulated a multi-year history of direct and indirect engagement signals (e.g., clicks, watch time, searches, shares, or repeated exposure through friends and local pages) that can cause platforms' systems to treat the topic as personally relevant and therefore worthy of repeated placement.

CONCLUSION

24. For the reasons stated, it is Dr. Edelman's opinion that the modern internet and social media ecosystem—especially algorithmic curation and personalization—has fundamentally altered how news is consumed and makes local, high-profile publicity substantially harder to avoid for residents of the locality where the events giving rise to the case occurred and the case is being tried.

Dr. Edelman is available to cooperatively consult with opposing counsel upon reasonable notice.

DATED this 6th day of April, 2026.

Respectfully submitted,

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Michael N. Burt
Michael N. Burt

/s/ Richard G. Novak
Richard G. Novak

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 6th day of April, 2026, which served all attorneys of record.

/s/ Staci Visser